



Notification Waiver Determination

Global Lithium Resources - IGO Nova Operation

Acquisition	GL1 HoldCo No 3 Pty Ltd, a wholly owned subsidiary of Global Lithium Resources Limited (GL1), applied for a notification waiver in respect of its proposed acquisition of 100% of the issued share capital in IGO Nova Pty Ltd (IGO Nova) from IGO Nova Holdings Pty Ltd (Nova Holdings), a wholly owned subsidiary of IGO Limited (IGO), as described in the transaction documents provided as part of the application (the Acquisition). A portion of the consideration for the Acquisition will be paid by way of scrip, which could see IGO own up to 13,333,333 shares in GL1.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	18 September 2026

Parties to the Acquisition	The acquirer, GL1, is an Australian lithium exploration and development company. It is primarily focused on advancing its 100% owned flagship Manna Lithium Project, located in the Goldfields region of Western Australia. GL1 is headquartered in West Perth, Western Australia. The target, IGO Nova, is the sole owner of the Nova Operation, an underground nickel, copper and cobalt mine in Western Australia's Fraser Range. The Nova Operation also comprises a nickel-copper processing plant, a 500-bed operating camp and associated infrastructure (power station, a sealed runway, water treatment plant). The Nova Operation is at the end of its life and mining at the underground mine is expected to conclude by late 2026. IGO is an Australian mining and exploration company that discovers, develops and produces critical minerals, primarily lithium, nickel, copper and cobalt.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition, given: there is no horizontal overlap between GL1 and IGO Nova in the production of nickel, copper, cobalt or lithium in Australia

	b. there is limited horizontal overlap between GL1 and IGO in the production of lithium in Australia, and there are alternative producers of lithium in Australia c. the Acquisition is unlikely to result in any substantive change of control of GL1. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Give that material competition concerns are unlikely to arise, the ACCC has determined the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act